

23SMCV00630 23SMCV00630

County: los-angeles

Division: Civil Law and Motion

Department: 207

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Case Number: 23SMCV00630 Hearing Date: September 9, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

9, 2026

CASE NUMBER

23SMCV00630

MOTION

Motion

to Deem Admitted – Requests for Admission

MOVING PARTY

Defendant

Steven Lee Rodriguez

OPPOSING PARTY

none

MOTION

This case arises from allegations that Defendant, while in the capacity of Plaintiff's counsel, abandoned Plaintiff in the middle of a trial.

The operative First Amended Complaint ("FAC") brought by Plaintiff Teresija Sigmund ("Plaintiff") against Steven Lee Rodriguez, f/k/a Steven Rodriguez, a Professional Corporation ("Defendant") alleging three causes of action for (1) breach of contract; (2) fraud; and (3) general negligence.

Defendant now moves to deem admitted the matters in the Requests for Admission, set one ("RFA") and for monetary sanctions against Plaintiff and her counsel of record. The motion is unopposed.

ANALYSIS

1.

Requests for
Admission

Pursuant to Code of Civil

Procedure section 2033.280, subdivision (a), "[i]f a party to whom requests or admission are directed fails to serve a timely response . . . [t]he party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.]" (Code Civ. Proc., § 2033.280, subd. (a).) Where a party fails to respond to requests for admissions, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction.¿ (Code Civ. Proc., § 2033.280, subd. (b).)

On December 3, 2025, Defendant electronically served the RFA to Plaintiff's counsel, making Plaintiff's verified responses due January 5, 2026. (Fobi Decl. ¶ 3 and Ex. 1.) Since the motion was filed, Defendant has not received any responses to the RFA. (Ibid.)

Accordingly, the Court finds that Plaintiff has failed to serve timely responses to the RFA.

2.

Sanctions

The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2033.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.

(Code Civ. Proc., § 2033.280, subd. (c).)

Defendant requests monetary sanctions in connection with the motion.

The Court

finds

Plaintiffs' failure to timely respond to the RFA to be an abuse of the discovery process, warranting monetary sanctions. (See Code Civ. Proc., §§ 2033.010, subd. (d), 2033.280, subd. (c).) Accordingly, the Court will impose monetary sanctions against Plaintiff, and Plaintiff's counsel of record, Wendy K. McNabb, in the amount of \$1,100.00, which represents 2 hours of attorney time to prepare the moving papers at \$550.00 per hour.

CONCLUSION AND ORDER

Therefore, the Court grants Defendant's motion to deem admitted matters specified in the RFA per Code of Civil Procedure section 2033.280, and deems admitted the matters specified in the RFA propounded to Plaintiff.

Further, the Court orders Plaintiff and Plaintiffs' counsel of record, Wendy K. McNabb, jointly and severally to pay monetary sanctions in the amount of \$1,100.00, to Defendant by and through counsel for Defendant, within 30 days of notice of the Court's orders.

Further, the Court has reviewed
and considered proposed Orders lodged on August 5, 2026, and finds the proposed
Order to contain superfluous details and commentary which the Court will not
endorse. As such, the Court orders
Defendant to lodge and serve a proposed Order, which conforms to the ruling and
is narrowly drawn, on or before September 18, 2026.

Defendant shall provide notice of
the Court's order and file the notice with a proof of service forthwith.

DATED: September 9, 2026 _____/s/_____

Michael E. Whitaker

Judge of the Superior Court